



PUBLIC INVESTMENTS (FINANCIAL SAFEGUARDS) (AMENDMENT) ORDINANCE, 2006

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PUBLIC INVESTMENTS (FINANCIAL SAFEGUARDS) (AMENDMENT) ORDINANCE, 2006

ORDINANCE NO. II OF 2006

An Ordinance further to amend the Public Investments (Financial Safeguards) Ordinance, 1960

WHEREAS it is expedient further to amend the Public Investments (Financial Safeguards) Ordinance, 1960 (XLVI of 1960), for the purposes hereinafter appearing;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:

1. Short title and commencement.-(1) This Ordinance may be called the Public Investments (Financial Safeguards) (Amendment) Ordinance, 2006.

(2) It shall come into force at once and shall be deemed to have taken effect on the 25th December, 2005.

2. Amendment of section 4, Ordinance XLVI of 1960. In the Public Investments (Financial Safeguards) Ordinance, 1960 (XLVI of 1960), hereinafter referred to as the said Ordinance, in section 4,

(a) for the words, comma and figure "Companies Act, 1913" the words, comma and figure Companies Ordinance, 1984" shall be substituted; and

(b) in the margin, for the figures and word "VII of 1913" the figures and word. "XLVII of 1984" shall be substituted.

3. Insertion of section 9A, Ordinance XLVI of 1960. In the said Ordinance, after section 9, the following new section shall be inserted, namely:-

"9A. Ordinance not to apply to certain bodies corporate, etc.-(1) Notwithstanding anything in this Ordinance a body corporate, company, institution undertaking and establishment, specified in the Schedule to this Ordinance, upon privatization pursuant to the Privatization Commission Ordinance, 2000 (LII of 2000) shall not be deemed to be a body corporate, corporation, institution, undertaking or establishment established with the aid of public revenues of the Federation or the Federal Government for the purposes of this Ordinance.

(2) The Federal Government may, by notification in the official Gazette, amend the schedule so as to add any entry thereto, modify or omit any entry therein".

4. Addition of Schedule, Ordinance XLVI of 1960. In the said Ordinance, after section 10, the following Schedule shall be added, namely:-

"THE SCHEDULE

[See section 9A]

1. The Pakistan Telecommunication Company Limited.
 2. The Pakistan Steel Mills Corporation."
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